

GUYANA | EXPLORATION TO PRODUCTION

THE GUYANA SEQUENCE

Petroleum Governance, Environmental Stewardship, Natural Resource
Fund Design and Lessons for Emerging Producers

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First researched chapters and a documented source register. The full 140-160 substantive-page publication and external expert review remain pending.

Source evidence cut-off: 27 September 2026. Observed 2026 financial data are through June unless indicated.

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Executive research brief

Read alongside MANUSCRIPT_WORKING_DRAFT.md and SOURCE_REGISTER.md. The final white paper is not yet externally reviewed or complete.

Purpose

Reconstruct the institutional and commercial sequence behind Guyana's transition to a large offshore petroleum producer. Test where its history supplies documentary evidence for another country preparing for first oil, and where forest endowment, geological scale, fiscal terms and local political institutions limit direct transfer. The intended audience is senior officials, new petroleum regulators, central banks, finance ministries, environmental agencies, civil-society researchers and offshore investors.

Verified sequence

Guyana has decades of exploration history. Liza was announced as commercially discovered in May 2015. The Stabroek petroleum agreement was entered in June 2016 and the official block register shows an October 2016 effective date. The first Natural Resource Fund law received assent on 23 January 2019, before oil production commenced in December 2019. The 2021 statute replaced the first framework and 2024 legislation changed withdrawal limits. The fourth operating FPSO, Yellowtail, began production in August 2025. Four FPSOs were operating during the first half of 2026. This chronology separates pre-oil institutional decisions from subsequent modifications. [S01-S05, S11]

September 2026 evidence snapshot

The September 2026 Ministry of Finance mid-year report, describing activity through June, records 162 crude lifts, of which 21 represented government profit oil. During the half-year, government received USD 1,778.6 million in profit-oil proceeds and USD 218.4 million in royalties. The Natural Resource Fund stood at USD 4.2942 billion on June 30 after USD 1.02 billion of first-half withdrawals. The ministry revised its projected full-year 2026 petroleum deposits to USD 6.4976 billion. The latter number is a projection rather than revenue already received. Government estimated overall real GDP growth of 33.3% and non-oil growth of 10.1% for the first half; GDP estimates do not directly show changes in household poverty. [S07, S10]

The distinction most useful to a new producer

The 2016 Stabroek PSA and Guyana's later model PSA do not have the same fiscal terms. For 2016 Stabroek, the published administrative summary describes a 2% royalty, a cost-recovery ceiling of 75% and equal sharing of profit oil. Under the government revenue authority's simplified binding-cap example, 12.5% profit oil plus 2% royalty yields 14.5% of gross revenue. The figure changes as recoverable costs change. The later model for new licensing announced a 10% royalty, 65% maximum cost recovery and 10% corporate tax. The two regimes must be analysed separately, along with the information available at the time each was negotiated. [S02, S14-S15]

Institutional subjects for detailed scrutiny

1. Early-law timing. The NRF predates first oil, but the institution changed over time. Assess legislation, actual reporting, parliamentary authorization, investment stewardship and expense outcomes individually.
2. Fiscal and contract administration. Petroleum volumes, government lifts, sales, cost-bank reductions, royalties, cash deposits and budget transfers are different measures. Cost-oil dispute resolution and audit resources matter alongside contract percentages.
3. Environmental assurance. Project-specific EIAs and permits, monitoring, emergency assets, enforceable insurance, operator liability and cross-border response are separate protections. The 2025 pollution act was enacted, but the 2026 mid-year report described implementation regulations and commencement as ongoing work. The May 2026 Court of Appeal decision on financial guarantees requires analysis of the full judgment and underlying instruments.
4. Economic absorption. A high fiscal balance does not establish that roads, hospitals, schools, housing and flood defenses meet service and maintenance targets. IMF staff in July 2026 called for long-run fiscal guideposts, spending-outcome monitoring, procurement compliance and stronger cost-oil audits.
5. Social and community outcomes. Gross domestic supplier spend is not local value added. Old poverty-survey results cannot demonstrate current welfare. Indigenous village allocations require programme-level and locally grounded verification.
6. Transparency and institutional participation. The EITI Board launched Guyana's delayed second validation in May 2026 and recorded concerns about confidence in the independence of civil-society representative selection. The final paper will capture independent stakeholder responses and the final validation decision if published by the cut-off.
7. Parallel climate systems. Guyana's 2009 LCDS and Norway partnership preceded oil. Carbon-credit contracts, payments and village benefit-sharing require separate accounting from the NRF and domestic petroleum emissions. Forest results cannot be transferred mechanically to reef-based or low-forest island states.

Comparator lenses

Ghana's 2011 revenue law offers distinct stabilization and heritage funds and public publication requirements. Norway's fund documents describe transferring net state petroleum cash into a large investment fund and a long-run real-return-linked fiscal guideline. Timor-Leste's 2005 Petroleum Fund provides another small-state legal design. Suriname's GranMorgu was still under construction in September 2026, with first oil planned for 2028, making the country a relevant pre-production comparison rather than a second operating case. No design is treated as an automatic policy choice for another country. [S24-S27]

Implementation workbook for a newly discovering jurisdiction

Exploration: Record basin geology and uncertainty, licensing authority and contract disclosure, ownership, environmental baseline, marine response capabilities, available technical expertise and prospective contingent liabilities.

Commercial discovery: Build independent resource and development assessment, model fiscal terms on common assumptions, identify costs and the risk allocation actually negotiated, obtain project-specific environmental assessment, map nearby fisheries and communities, establish audit rights and publish authorized agreements subject to legitimate protections.

Before first oil: Test metering and valuation, recoverable-cost records, royalty invoicing, financial custody, parliamentary procedures, periodic public reporting, spill drills, grievance channels and beneficial-ownership records. Determine budget contingencies without booking forecast oil prices as guaranteed receipts.

First two years of production: Publish reconciled lifts, realized prices, royalty and profit-oil cash, fund balances, parliamentary withdrawals, government project execution and all material environmental incidents. Check whether procurement and supplier development result in verified domestic value.

Scaling: Stress-test price changes, new project cost-bank additions, maintenance obligations, delayed infrastructure and major spill financial exposure. Compare national growth with independently sourced real household outcomes.

Publication acceptance conditions

Complete the full multi-chapter manuscript and original, reproducible exhibits. Independently reconcile NRF period accounts, obtain the Court of Appeal judgment and original insurance and permitting instruments, resolve the legal commencement status of the 2025 spill act, incorporate final EITI 2026 status, document Indigenous stakeholder evidence, check page-specific citations and have relevant experts challenge fiscal, legal, environmental and social conclusions. Count only substantive PDF pages, inspect charts and citations, and describe independent external review as pending unless completed.

Primary citations: S01-S27 in SOURCE_REGISTER.md. The manuscript is an initial researched deliverable, not a 140-160-page finished publication.

2026 observation snapshot

2015	May Liza commercial discovery	[S01]
Jan 2019	NRF statute assented before first oil	[S04]
Dec 2019	Liza Phase 1 first oil	[S01]
Aug 2025	Yellowtail became fourth producing FPSO	[S11]
Jun 2026	End-June NRF cash: USD 4.2942 billion	[S07]
Jun 2026	H1 authorized withdrawals: USD 1.02 billion	[S07]

Dates refer to distinct events. Production capacity is not actual annual output. Fund cash is not contracted or forecast future revenue.

Worked fiscal exhibit: simplified 2016 Stabroek waterfall

Using the Guyana Revenue Authority's illustrative gross-revenue convention, royalty is separate and borne by the contractor group. A 75% cost-recovery cap is a maximum, not a permanent claim on every barrel. Values below are illustrative units out of 100, not observed 2026 receipts. [S02, S15]

Recovery used	State profit oil	State royalty	Combined state units
75% (cap binding)	12.5	2.0	14.5
50% (illustrative)	25.0	2.0	27.0
20% (illustrative)	40.0	2.0	42.0

Substantive manuscript

Abstract

Guyana's offshore petroleum expansion offers an unusually compressed record of resource discovery, contractual negotiation, institutional preparation, sovereign revenue management and rapid commercial production. Liza was announced as a commercial discovery in 2015. The Natural Resource Fund was established by legislation in January 2019 before the first offshore crude was produced in December of the same year. Four floating production, storage and offloading facilities were operating by the first half of 2026. At June 2026 the government reported a USD 4.2942 billion NRF cash balance after USD 1.02 billion of withdrawals in the first half. These observations are meaningful, but on their own they establish neither an optimal petroleum agreement nor durable welfare gains. [S01, S04, S07]

This research reconstructs events in the order they happened. It distinguishes pre-existing foundations, policy instruments established before first oil, later reforms and results still under evaluation. It examines revenue accounting, the 2016 Stabroek production sharing agreement, environmental impact assessments, oil-spill legislation, public financial management, labour and domestic suppliers, forest protection and climate finance. It then maps administrative and technical decision points for another prospective producer. The paper treats a new island state differently from a forested continental state, and a non-commercial discovery differently from an operating offshore field.

The evidence is mixed. Formal fiscal and reporting institutions preceded first oil. Government and operator data document rapid expansion and growing petroleum revenues. IMF staff in July 2026 also called for stronger oil-sector audit capacity, better procurement and public-enterprise oversight, more complete household statistics and a firmer long-run fiscal guide. The EITI Board opened a delayed 2026 validation while stating concern about the independence and stakeholder confidence of the civil-society selection process. The legal framework for pollution preparedness expanded with a 2025 act, but the June 2026 government report described regulations and commencement as work still underway. These are central facts rather than footnotes. [S07, S08, S16, S19]

A transferable case is not a list of admired policies. It is a documented sequence of institutional choices, conditions required for operation, observable results, alternative interpretations and identified points of failure.

Method and definitions

The unit of analysis is Guyana's petroleum and related national governance system from exploratory activity to 27 September 2026. The offshore Stabroek project provides the production case, but the ecological and development analysis covers Guyana as a whole. The temporal cut-off is essential: September 2026 projections about year-end output and revenue are not presented as observations.

Five evidence categories are kept apart. Legal evidence consists of texts enacted, brought into force and amended. Administrative evidence consists of official licence, permit, audit and oversight documents. Financial evidence consists of audited or dated management accounts, with

explicit cash-period boundaries. Operating evidence consists of production and commissioning records. Social and ecological evidence requires outcome data rather than expenditure or project announcements. Statements from government and companies are attributed to their authors. Independent multilateral assessments and civil-society concerns are reported with their own evidentiary limitations.

Throughout, a production capacity figure means engineering capacity, not an actual monthly mean. A crude export receipt is not public revenue. Government profit-oil lifts are not identical to sales received in the same month. A fund deposit is not a parliamentary withdrawal, and the fund's cash balance is not equivalent to the public investment portfolio. Contractual value for future carbon-credit purchases is not current cash. National GDP is not a household consumption survey. These separations prevent the apparent precision of high-level figures from concealing incompatible denominators.

1. Before discovery: institutions, geology and the timing problem

Guyana's petroleum history did not begin in 2015. Onshore work dates to the early twentieth century; offshore exploration began in the middle of that century. Seismic surveys and drilling by successive companies preceded the commercial Liza discovery. ExxonMobil's retrospective 2023 report places offshore exploration attempts in the late 1950s and describes more than forty wells drilled in the basin over decades. This history matters because a country rarely controls the exact timing of an economically viable discovery. Dry wells, capital cycles, technical interpretation and petroleum prices determine much of the interval between exploration and commercial development. [S01]

Guyana also entered the modern oil period with an existing economic and ecological agenda. Its original Low Carbon Development Strategy began in 2009. A parallel Guyana-Norway results-based forest agreement began in the same year. The government subsequently reported USD 227 million earned for forest climate services during 2009-2015. A monitoring, reporting and verification system for the forest sector developed before first oil. These were pre-petroleum policy institutions and a separate financial stream, not products of the petroleum fund. [S22]

This chronology prevents two analytical mistakes. First, attributing every later institution to the petroleum discovery erases existing public administration, regulatory experience, forest monitoring and the long history of commodity production. Second, projecting Guyana's forest-carbon results onto a small island with few forests would confuse the national resource endowment with a universally available funding instrument. The transferrable administrative lesson is the practice of mapping existing technical capacity before a commercial discovery, not the replication of Guyana's exact endowment.

In an exploration-stage country, the relevant decision documents include the geological data policy, licence register, basin environmental baseline, fiscal-risk inventory, ministerial and regulatory division of responsibilities, spill-planning jurisdiction, beneficial-ownership requirements and public disclosure rules. Each is meaningful before a first commercial find. A government may procure legal and reservoir expertise through transparent short-term appointments instead of creating a large permanent petroleum bureaucracy without proven

reserves. Whether to establish a state producer, auction acreage, negotiate directly or reserve blocks requires a jurisdiction-specific legal and fiscal assessment. The case study will therefore map decision rights and procedural safeguards rather than prescribe one commercial model.

Guyana is also climatically distinctive. Much of its population and capital stock sit on a low coastal plain subject to flooding, while large forested and hinterland regions have different infrastructure, service-delivery and land-governance needs. An offshore development changes the fiscal envelope without eliminating these geographic constraints. An independent comparison must measure whether new capital expenditure reduces lifecycle exposure to flooding, power insecurity and maintenance costs. Building a new asset is an input; a working, resilient asset delivering service over time is the intended outcome.

The period before discovery is thus analytically separate from 2015-2019. A useful exploration chronology should identify not only when a well discovered hydrocarbons but also when the state gathered geological information, published licence terms, defined ownership, set environmental baselines and strengthened its ability to challenge an operator's commercial and technical submissions. Without that baseline, governments and external observers struggle to separate inherited institutional capacity from later improvements.

2. The discovery-to-first-oil window, 2015-2019

The Liza discovery announced in May 2015 changed the commercial outlook for the offshore Stabroek block. On June 27, 2016 the government and the consortium entered a petroleum agreement, with a stated October 7, 2016 effective date in the official block register. Different public records refer to signature, agreement and effective dates. Those dates should appear separately in the final chronology. The project reached first oil in December 2019. The roughly four-year interval after discovery is the institutional preparation window studied here. [S01, S02, S03]

The 2016 Stabroek agreement reflects the conditions and bargaining positions of a frontier offshore development at the time it was signed. Any contractual comparison needs the exact agreement text, hydrocarbon uncertainty at signature, oil-price conditions, deepwater capital intensity, exploration obligations, relinquishment provisions and environmental commitments. Retrospective government revenues and later geological success do not automatically establish the value a counterparty placed on acreage before commercial certainty. Conversely, early commercial uncertainty does not remove the need to document fiscal options or expose a government to unreviewed recoverable costs.

The public Stabroek agreement has a 2% royalty, up to 75% monthly cost-recovery ceiling, and an equal division of remaining profit oil. The Guyana Revenue Authority explains that when the ceiling binds, a simplified revenue calculation gives 12.5% of gross sales as government profit oil plus a 2% royalty, or 14.5% under its stated accounting approach. That is a conditional illustration, not an unchanging government entitlement. When permitted recoverable costs use less than the cap, the profit-oil pool increases. Approved future development expenditures may replenish the cost bank. Audit treatment, allowable expenditure and valuation matter as much as headline sharing percentages. [S02, S07, S15]

The historical test of the contract therefore has at least four separate components: returns relative to the information available at signing, compliance with the signed terms, effectiveness of subsequent cost verification, and the state's ability to use later experience in different acreage awards. Public debate frequently merges these into a single judgment. This manuscript keeps them separate and will not declare a country-level winner or a contract-level overall score.

A relevant reform sequence is observable. The government later announced model terms for future offshore bidding with a 10% royalty, a 65% cost-recovery ceiling and a 10% corporate tax. Profit oil remains shared equally after cost recovery under the model. These later terms are distinct from the continuing Stabroek agreement and must never be back-applied when calculating historical or forecast revenues from the producing block. The published model documents and any final signed new licence terms require an agreement-by-agreement crosswalk. [S14]

What early fund establishment demonstrates, and what it does not

The Natural Resource Fund Act received assent on January 23, 2019, almost eleven months before first oil in December 2019. The Ministry of Finance's 2024 NRF annual report confirms the date. This is a material pre-production institutional milestone: the state adopted a statutory vehicle before recurring offshore oil cash arrived. Yet formal creation alone says little about later spending efficiency, distributional outcomes or the adequacy of subsequent withdrawal rules. Those questions require separate assessment. [S04]

The 2019 establishment also did not mean the rules remained unchanged. The 2021 law replaced the 2019 act. The withdrawal provisions changed again on February 6, 2024. A new country examining this case should distinguish statutory creation, operational readiness, independent monitoring, transparent publication, integration with annual budgets and revision procedures. A law on paper is the first link in a longer accountability chain.

3. From first oil to large-scale production, 2019-September 2026

Production commenced at Liza Phase 1 in December 2019. Liza Phase 2 followed in 2022, Payara in November 2023 and Yellowtail on August 8, 2025. Yellowtail's ONE GUYANA FPSO joined the Destiny, Unity and Prosperity vessels and took combined installed capacity past 900,000 barrels per day. ExxonMobil announced a daily production milestone of 900,000 barrels in November 2025. That one-day milestone is distinct from annual average production, and installed capacity alone never establishes actual output. [S01, S11, S12]

The national petroleum production chart extends through July 31, 2026. The Ministry of Finance's 2026 mid-year report says production from the four FPSOs exceeded 900,000 barrels per day during the first half. The same report describes the fifth Uaru project as under construction with start-up targeted for the final quarter of 2026. Future development output should remain in a prospective column until a dated commissioning announcement and verified operating record are obtained. [S07, S13]

Production is not a single variable. An operating dossier needs the count and size of producing vessels, uptime, reservoir performance, flaring events, methane monitoring, water injection,

transport logistics, crude grades, lifting dates, export prices, cost-bank balances and the share delivered to the state. The government recorded 162 crude lifts during January-June 2026, including 21 government profit-oil lifts from the four producing units. Yet receipts in the same period included payments for three lifts occurring in late 2025, while payments for some mid-2026 lifts fall later. An analytical table pairing production dates directly with cash receipts without that timing adjustment would misstate the relationship. [S07]

Guyana reported USD 1,778.6 million in government profit-oil sales receipts and USD 218.4 million in royalties during the first half of 2026. End-June NRF cash stood at USD 4,294.2 million after USD 1,020 million in withdrawals during the period and including reported interest. These figures come from the government's September 2026 publication. Independent reconciliation with Bank of Guyana monthly and quarterly releases and external audit statements is part of the final source gate. [S07]

The speed of commissioning is commercially significant but creates linked challenges. Regulatory personnel need sufficient specialist expertise and access to data as vessel numbers multiply. Shipping and aviation capacity grow along with occupational risk. Contractor spending can expand faster than qualified local supplier capacity. Power demand, roads and port assets face supply-chain constraints. Large monthly tax and petroleum receipts expand budget options while also increasing the consequences of weak procurement or poor project sequencing. None of these effects is captured by a barrels-per-day graph.

The final paper will therefore present a development-by-development table with first-oil dates, sanctioned costs as of the applicable date, FPSO investment-basis capacity, actual quarterly output, permitted emissions and flaring, environmental reporting and the regulator's approval and inspection milestones. An approved project not yet producing will have blank realized-output cells rather than copied operator forecasts.

4. The Natural Resource Fund as a fiscal institution

The conceptual purpose of a natural-resource fund is to separate volatile extractive cash inflows from the immediate authorization of public expenditure. In Guyana's case, the fund was legally established before first oil. The 2021 replacement statute specified a governance structure including a board, revised accountability arrangements and withdrawal rules. The 2024 amendment increased the statutory withdrawal envelope. A claim of good fiscal practice requires analysis of each version and its observed effects rather than treating the act as an immutable institution. [S04, S05]

The fund receives the government's defined petroleum revenue streams and investment income. Withdrawals move money to the consolidated fund under parliamentary budget authorization. The public account must allow a reader to reconstruct each stock-and-flow identity:

Opening fund cash + petroleum receipts + investment income + other recognized movements - authorized transfers = closing fund cash.

Each item needs an observation period, currency and treatment of accruals or late receipts. The initial paper uses the figures disclosed for June 2026 rather than extrapolating a final year-end

outcome. The Ministry of Finance reported USD 4.2942 billion in cash at end-June after USD 1.02 billion in first-half transfers. Its revised 2026 estimate raised full-year petroleum deposits to USD 6.4976 billion, from the much lower January budget assumption. This updated full-year estimate remains a projection, influenced in the ministry's explanation by oil prices and reduced use of the cost-recovery ceiling. [S06, S07]

The revision illustrates two fiscal hazards. First, a large increase in projected receipts can be mistaken for an equally large increase in prudent current-year spending space. The withdrawal law and parliamentary budget framework are separate from the projection. Second, a rapid decline in historical cost recovery could create short-term windfall receipts that do not recur in the same amount after a new field enters development. The 2026 mid-year report expressly notes that costs from additional projects may increase the cost bank again. [S07]

IMF staff's July 2026 statement recognized the accumulation of substantial NRF balances and Guyana's debt position, while proposing consideration of a longer-run operational fiscal guide based on the non-oil primary balance. Staff argued that unexpected gains under sustained high oil prices should be examined against the economy's ability to absorb investment and called for stronger monitoring of public spending outcomes and public-enterprise risks. These are attributed external assessments. They do not prove one single withdrawal formula suitable for all emerging producers. [S08]

Cash management is not public investment evaluation

A fund statement answers where petroleum cash is and how money moves. A public investment system answers which projects are funded, procured, built, independently inspected, maintained and used. The two systems are linked but not interchangeable. A budget line for a hospital is not a verified improvement in service quality. A construction contract is not a functional road that survives flooding. A scholarship allocation is not a measured increase in skills or labour-force productivity.

The transfer framework should therefore include a separate public investment register. Each large project would record a published business case, procurement method, contract variations, delivery date, capital and lifecycle cost, disaster exposure, expected users and independent completion evidence. Where data are absent, the final manuscript will mark an evidence gap instead of inferring success or failure. Even with high revenues, capital-intensive programmes compete for engineers, surveyors, procurement specialists, nurses, teachers, land and imported construction inputs.

For a potential new producer, the administrative sequence to document includes the statutory revenue recipient, published deposit statements, a withdrawal authorization chain, parliamentary scrutiny, an external audit schedule and the project-level outcome ledger. The precise spending-versus-saving rule is a sovereign policy choice shaped by development needs, reserve life, debt, population, climate exposure and macroeconomic conditions. This research describes alternative designs and their trade-offs without assigning a universal answer.

5. Fiscal contract oversight and the cost bank

Production sharing is often explained as a royalty followed by a cost-oil allocation and a split of the remainder. That summary is insufficient for technical oversight. A credible government revenue forecast requires a model of recoverable cost categories, timing and approval of development expenditures, production valuation, commodity prices, crude quality adjustments, operating expenses, currency and transfer-pricing controls, decommissioning treatment and dispute procedures.

Under the 2016 Stabroek framework as summarized by the Guyana Revenue Authority, the simplified case in which the 75% cap is fully used allocates 75 of each 100 normalized revenue units to cost recovery, 12.5 to government's half of remaining profit oil and 12.5 to the operator group. A separate 2-unit royalty produces the familiar 14.5-unit combined government royalty/profit share under the authority's calculation. This is an explanatory model rather than a substitute for detailed contract accounting. In other periods the ceiling need not bind. [S02, S15]

At a hypothetical 50-unit cost share with a 100-unit revenue base, a simple 50/50 remainder gives the state 25 units of profit oil plus 2 units of royalty. At a hypothetical 20-unit share, the same pedagogical formula gives 40 plus 2. Actual payments need the contract's detailed oil-volume and valuation procedures, and this illustration excludes tax treatment, timing, carried costs and cash-versus-kind settlement. No reader should interpret 27% or 42% as an observed 2026 fiscal take or a forecast.

The 2026 mid-year report reported accelerated cost recovery as the historical cost bank was reduced and projected a substantially higher number of government lifts than expected in January. The report warns that new projects enter the cost bank and that clearing historical costs does not create a permanent government claim to half of gross sales. Such cautions belong in the main text because the choice of production denominator changes the interpretation of public revenue. [S07]

Contract administration also depends on verifiable audit capacity. The July 2026 IMF mission noted ongoing efforts to resolve cost-oil audits, including arbitration, and emphasized timely resolution, specialist audit staffing and the quality of government oversight. An administrative case study must distinguish allegations made in disputes, expenditures accepted as recoverable, auditor adjustments proposed, adjustments finally collected and open proceedings. A proposed disallowance is not recovered public revenue. [S08]

The later model fiscal terms illustrate a second issue: the government's bargaining position and acceptable return vary across the discovery cycle. The announced model's 10% royalty and 65% maximum cost recovery, together with equal residual profit oil and a 10% corporate tax, differ from the 2016 block agreement. A comparison should show gross expected government receipts, investor breakeven and downside geological outcomes under common assumptions; it should not infer comparative welfare from two headline royalty rates. [S14]

6. Environmental law, liability and offshore operations

Petroleum regulation should begin with an accurate inventory of harms, affected populations, potential transboundary effects and the physical capacity to respond. For a coastal state the issues include coastal water and fisheries, tourism, biodiversity, emergency maritime aviation, ocean currents, offshore worker safety, greenhouse-gas emissions, shore-based waste and possible liability beyond national waters. Guyana's EPA operates a formal environmental authorization process for projects with environmental impacts. The existence of a permit is a necessary legal record, not proof that its terms have been independently monitored or that every risk is extinguished. [S21]

The sequence should distinguish environmental assessment before project approval, permit conditions during construction, real-time operating monitoring, incident reporting, post-incident enforcement, insurance coverage and financial recourse. It should also distinguish public access to raw monitoring results from operator-authored summaries. A complete research exhibit would list each operating FPSO, its applicable environmental permit and environmental impact assessment, permitted flaring limits, reporting frequencies, available inspections, observed incidents and documented remediation.

Guyana enacted the Oil Pollution Prevention, Preparedness, Response and Responsibility Act in 2025. It addresses oil-spill prevention, planning, national response and financial responsibility. The 2026 mid-year report, covering January-June, says implementing regulations were still being drafted and that commencement was expected by the end of 2026. At the 27 September cut-off this report does not establish that the entire statute was already operational. The final legal chapter must check the Official Gazette and commencement instruments before moving a provision from 'enacted' to 'in force'. [S19, S07]

Financial assurance illustrates why precise legal language matters. In May 2026 the Court of Appeal overturned a 2023 High Court order requiring an unlimited guarantee under an offshore permit. The government's description of the appellate decision says the EPA had lawful discretion over the amount of financial assurance and that the High Court had improperly substituted its own decision for the regulator's judgment. A contemporary independent report also distinguishes an operator's continuing liability from the amount of security furnished in advance. Neither point, alone, resolves the empirical question of whether funds available following a catastrophic release would meet cleanup, compensation and ecological restoration costs. An authenticated judgment and actual policy documents are required for final legal analysis. [S20]

An offshore assurance model has multiple layers. Direct operator resources, insurance, any parent-company guarantee, rapid-access emergency cash, contracted response assets, reciprocal regional assistance and state contingency planning differ in legal trigger, latency, currency, scope and enforceability. They should not be merged into a headline figure without examining policy exclusions, aggregate limits, arbitration, who controls claim settlement and conditions after a multi-jurisdiction spill. For island and continental states alike, cross-border current modelling and neighbours' ability to respond are material planning inputs.

A future final chapter will include a reproducible response drill template: discovery-to-notification time, mobilization time, dispersant approval procedures, mechanical recovery resources,

sensitive-habitat priority maps, fishery-closure authority, independent incident sampling, medical surveillance and claims processing. Without disclosed observed drill performance, the template remains a prospective audit instrument rather than a finding about current operational readiness. Forest conservation and offshore pollution are separate environmental systems and must be evaluated on their own evidence.

7. Forest conservation, carbon finance and the fossil-fuel coexistence problem

Guyana's 2009 LCDS predated oil production by a decade. Its results-based forest partnership with Norway covered 2009-2015 and the 2024 LCDS update reported USD 227 million earned in that period. In 2022 the country introduced an expanded LCDS 2030 and arranged a multiyear sale of ART TREES jurisdictional forest credits to Hess. The published minimum purchase commitment is USD 750 million, with specific prices and volumes by credit vintage. The policy states that 15% of associated receipts are dedicated to eligible Indigenous village-led plans, and the remaining share finances wider LCDS priorities. A contract for future delivery is distinct from credits already issued, transferred, paid for and spent. [S22, S23]

This history permits analysis of two distinct resource-finance channels: extractive revenue deposited in the NRF and ecosystem-service payments managed through LCDS financial structures. A combined national wealth view is useful for climate and budget choices, but it would be inaccurate to describe all carbon receipts as oil revenue or add contracted future carbon sales to cash in the NRF. Oil production is a fossil-fuel supply activity; forest-credit issuance depends on independently specified carbon-accounting baselines, monitoring, additionality and leakage treatment. One does not mechanically cancel the other. Any claim of national carbon neutrality requires economy-wide emissions and accounting safeguards, not a simple subtraction of a contracted offset volume from petroleum exports.

The transferable question is whether a resource-producing state maintains independently verifiable environmental accounting for different assets. In Guyana's case, the forest monitoring and results-payment experience is relevant to land-use data quality and international partnership design. Its applicability to another jurisdiction depends on ecosystem type, forest tenure, historical deforestation, Indigenous rights, corresponding adjustments and carbon buyer eligibility. A reef-based island has different biodiversity and marine accounting issues. Carbon-market prices, certification methods and buyer eligibility are also vulnerable to change.

LCDS policy statements about village allocations, sea defenses, electricity investment and community livelihoods need outcome-level tests. A national transfer proves expenditure authorization, but independent review would examine arrival in designated accounts, locally agreed development plans, procurement documentation, functioning assets and households reached. Consultation must identify which communities participated, which declined and how grievances were addressed. A strategy can carry the language of inclusion while still requiring village-level verification.

IMF staff in July 2026 highlighted Guyana's market-based forest conservation, disaster-resilience investments and energy transition, while also identifying needs for stronger official statistics and procurement. These assessments do not eliminate the analytical tension between increasing fossil

output and the global energy transition. The final analysis will report domestic operational emissions separately from combustion of exported oil, land-use emissions and carbon-credit issuance. A policy commitment and a measured atmospheric outcome belong in different columns. [S08]

8. Local value, social outcomes and accountability

Guyana's Local Content Act was passed in December 2021. The law establishes a formal route for specified Guyanese participation and reporting by petroleum operators and suppliers. The 2026 mid-year report estimates roughly USD 466.2 million in procurement across sectors prioritized for Guyanese participation during the first half of the year, while government work on possible expansion of the law's scheduled categories was still underway. The number measures gross procurement in designated sectors. It does not independently reveal domestic value added, local beneficial ownership, wage quality, profits retained, product standards or the effect on non-petroleum employers. [S05, S07]

The final local-value chapter will disaggregate contractors, service categories and ownership. It will use an explicit distinction between a registered Guyanese supplier and domestic production content. Examples include port services, welding, catering, transport, engineering, aviation, environmental monitoring and professional services. An imported piece of equipment resold by a locally registered firm generates different domestic value from an engineered product manufactured and maintained in Guyana. The public data should be audited against supplier certification and customs records where legally available, with confidentiality and commercial rights preserved.

Rapid resource expansion also changes wages and the availability of teachers, nurses, civil servants and smaller-firm engineers. Government's 2026 mid-year report discusses technical and professional skills shortages and potential execution delays. Fiscal transfers and construction can raise activity while pushing against constraints in local land, machinery and skilled labour. An evidence-led study needs salary indexes, migration measures, training completions and occupational vacancy data by region. National job announcements or scholarships alone do not establish net employment and long-run earnings effects. [S07]

Social outcomes are especially susceptible to mistaken timing. The World Bank's country overview reports an older national poverty estimate based on 2019 data and explicitly notes the absence of recent comparable poverty data in that published summary. It would be misleading to treat that figure as the current 2026 poverty rate. An updated household survey, real regional consumption, nutrition, access to safe water, school completion and hinterland service coverage offer a stronger basis for later conclusions. The final paper will identify missing indicators rather than invent a post-oil poverty trajectory. [S10]

Transparency has several layers: formal contract publication, beneficial ownership, production volumes, government receipts, cost-oil audits, independent regulation, public participation and spending outcomes. Guyana has published several petroleum documents and EITI national reports. Its December 2025 EITI country report covered the 2023 fiscal year. The time lag matters for a rapidly expanding industry. [S18]

The EITI Board's May 2026 decision launched a full validation starting May 15 following a delay and stated concern about a lack of stakeholder confidence in the independence of civil-society representatives' selection process. This is a documented disagreement about the quality of participation, not grounds for this manuscript to pronounce on the legitimacy of a political actor. The final report will present the EITI decision, views of the multi-stakeholder parties and subsequent verified developments without asserting the outcome of an unfinished evaluation. [S16, S17]

More frequent digital publication can improve timeliness but will not replace independent challenge. A public resource ledger becomes useful when readers can reconcile production, sale prices, contract obligations, royalty payments, NRF deposits and authorized budget transfers. That ledger should carry dataset versions, source URLs and correction notices. A complete digital publication should be intelligible to citizens and technically testable by researchers.

9. Five international comparator designs and limits

Ghana's Petroleum Revenue Management Act 2011 established a stabilization fund and a heritage fund, along with publication and parliamentary accountability provisions. This provides a comparator for separating short-run expenditure stabilization from long-run financial savings and for setting statutory reporting frequencies. Comparing statutes alone would not show which country delivered better outcomes: data on implementation, withdrawals, public debt and actual welfare need to be paired with each legal instrument. [S24]

Norway's Government Pension Fund Global receives the state's net petroleum cash flow and sits within a fiscal framework linked to an estimated 3% long-term real return. Its 2025 official white paper discusses a guideline for keeping normal-year withdrawals below that rate and maintaining buffers for adverse years. Norway has a different institutional history, population, capital market environment and mature stock of financial assets. A new producer cannot translate its numerical fiscal guideline without modelling local infrastructure deficits, expenditure absorption, debt and reserve uncertainty. [S25]

Timor-Leste established a Petroleum Fund by law in 2005 and amended that framework in 2011. Its early fund architecture offers a comparison for a small developing state facing large prospective petroleum receipts. The final paper will add verified 2026 data on petroleum-field production, fund withdrawals, budget reliance, and development outcomes before drawing conclusions about the performance of its particular formula. A statutory rule and its fiscal sustainability are separate propositions. [S26]

Suriname offers a regional pre-first-oil comparison. TotalEnergies' September 19, 2026 update reports continuing construction at the GranMorgu offshore development, with first oil planned for 2028. It is therefore a prospective comparison, not another operating case. The administrative question concerns which Guyanese preparations could be examined before Suriname's commissioning and which differ under its national oil company, contract terms, marine environment and institutional structure. [S27]

Small island states must be handled on their own terms. A prospective producer with no tropical forest sector cannot finance development through Guyana's precise jurisdictional forest-credit

structure. A shallow-water or nearshore field presents a different spill-response geography from deepwater Stabroek operations. Tourism and reef exposure, narrow fiscal revenue bases, hurricane risk, desalination, land scarcity and cross-border response agreements change the feasibility of proposed institutions. The resulting handbook will be a configurable set of decision records, not a claim that one nation's contract and fund law suit every geology or society.

10. Transferable administrative sequence and adverse cases

A sequence-based framework begins with the premise that sovereign choices are made under different degrees of uncertainty. During exploration, the uncertainty is commercial: hydrocarbons may never be discovered in economic quantities. After a discovery, the challenge is negotiating rights and environmental protections before irrecoverable infrastructure is commissioned. At first oil, financial accounting and incident reporting need to work reliably. During scaling, the bottleneck often shifts toward public investment capacity, cost-oil review, labour, supplier quality, maintenance and exposure to global prices.

An early-country workbook would document the following actions and evidence without deciding the jurisdiction's political choices: establish a public chronology of licence and environmental authorities; inventory all fiscal obligations and contingent liabilities; map marine and coastal ecosystem baselines; obtain independent reservoir, legal, accounting and spill expertise; publish contract versions and define justified confidentiality exceptions; describe who verifies volume and price; and simulate an offshore emergency with available regional partners. Each item has a named evidence document and an owner, rather than a generic assertion of preparedness.

The second workbook starts when a commercial discovery is established. It records the development proposal's production range, cost envelope, decommissioning plan, environmental alternatives and labour forecast. It creates a source-and-use-of-funds bridge under different oil prices and differentiates operator spending from direct government expenditure. It identifies whether fiscal rules would operate before or after first cash receipts, which body publishes fund statements and which institution investigates alleged audit anomalies. Political decisions about contract models, ownership structures or spending ratios remain open; the workbook presents their quantifiable constraints.

A first-oil readiness audit would test whether field meters, cargo valuation, royalty invoices, cost-bank records, central bank reconciliations, incident-response roles and legislative reporting function under realistic load. A regulator should not assume every new FPSO offers the same risk profile or environmental permit conditions. A simple flowchart linking the operator's field data to the revenue authority, finance ministry, NRF custodian and parliamentary appropriation creates a traceable basis for independent scrutiny.

Adverse case A: a long low-price interval

A sustained fall in realized crude prices compresses gross sales, royalties and profit oil. If economic activity depends on imported equipment, construction can also slow. A test should compare projected authorized spending against revised legally available fund transfers, fiscal buffers, project postponement clauses, debt service and protection of essential operations. The same price shock has different effects when the PSA cost cap binds and after capital costs decline. Never assume a fixed state share of gross revenue across all phases.

Adverse case B: newly approved development replenishes the cost bank

A field reaches high production and government receipts rise as historical development costs decline. The operator then proceeds with further sanctioned projects. New recoverable expenditures affect the profit-oil calculation. A model based on a single high-receipt period overstates durable public cash if it ignores this cycle. Preserve fields, vintages, cost categories and contractual cross-charging constraints separately.

Adverse case C: a major offshore spill

The study assumes a serious release during adverse sea conditions and asks which legal provisions are in force, who orders emergency action, when cash becomes available, which state pays upfront, what coverage exclusions apply, how claims enter foreign jurisdictions and how independent evidence is preserved. The hazard exercise tests institutions, not an asserted probability of catastrophe. The final paper requires independent review of actual emergency plans and contractually enforceable insurance terms.

Adverse case D: overheating without fiscal insolvency

Even with a rising financial fund balance, public construction demand may exceed available contractors, engineers and aggregate supply. Prices and wages rise, project delays accumulate and the non-oil economy loses competitiveness. The July 2026 IMF statement highlights absorption, procurement and monitoring concerns as questions for ongoing policy review. The stress test therefore tracks real input costs and completed units of service, not budgeted nominal spending alone. [S08]

Adverse case E: public confidence breaks despite disclosure

An extractive revenue portal posts thousands of data rows while representatives of affected communities question the independence of stakeholder selection or regulators' responses. Mechanical disclosure does not substitute for meaningful access to information, independent representation and a process for correcting data. The EITI Board's May 2026 statement makes the distinction concrete. The audit would trace how complaints are recorded, decisions documented and adverse findings disclosed. [S16]

11. Initial findings and publication boundaries

Five verifiable facts structure the emerging case. The first commercial discovery preceded first oil by roughly four years. A Natural Resource Fund statute was assented to before first production. Subsequent fund governance and withdrawal rules changed in 2021 and 2024. Four offshore FPSOs were producing by the first half of 2026, with growth in reported profit-oil receipts and substantial cash held in the NRF. Guyana also has a distinct pre-petroleum low-carbon and forest-finance history that continued alongside expanding oil production. [S01, S04, S07, S22]

The next layer concerns institutional performance rather than chronology. IMF staff documents continuing needs in fiscal anchors, public investment monitoring, procurement, petroleum audit capacity, statistics and public-enterprise oversight. EITI 2026 validation is an ongoing process with publicly recorded stakeholder concerns. Environmental policy includes expanded statutory architecture whose commencement and practical implementation require careful verification. These issues are integral to a useful international case study. [S07, S08, S16, S19]

What an emerging producer can extract from the evidence is a disciplined research method: establish the historical sequence, date each legal change, distinguish entitlement from receipt and expenditure, record ecological hazards at the licence level, publish cross-checkable financial reconciliations, separate climate assets from fossil-fuel accounting, and verify public-service outcomes independently of announcements. Those administrative questions apply across different policy choices. Specific contract terms, saving formulas and energy strategies remain jurisdiction-dependent decisions.

This is a first research manuscript, not a finished monograph. Before final publication the author must complete annual fund reconciliations, contractual and judicial text review, independent environmental and social evidence, a dated 2026 EITI outcome check, quantitative scenarios, comparative-country datasets, external technical review and page-specific reference verification. The proposed 140-160 substantive pages are a future acceptance gate rather than a page count claimed here.

Technical appendix A. Analytical definitions and worked examples

A1: Stock-flow reconciliation. Let F_0 be opening fund cash, D be period petroleum deposits, I be recognized cash investment income, O be other permitted cash flows and W be lawful disbursements. Then $F_1 = F_0 + D + I + O - W$. Disclose transaction timing, currency, investment valuation and whether interest has already been included in D . The Ministry's June 2026 fund balance was USD 4.2942 billion, after USD 1.02 billion in first-half withdrawals. An annual account cannot be assembled by combining that figure with full-year projected deposits without dates. [S07]

A2: Production-to-cash bridge. Petroleum units produced in month M differ from saleable units, cargo lifted in month M and receipts recognized by government in month M . A dated lift ledger should identify cargo, lift date, entitlement owner, grade, price determination, settlement currency, invoice date, deposit date and exchange rate. In H1 2026 the government's 21 lifts included late-recognition effects from 2025. [S07]

A3: Simplified production-sharing example. Normalize a period's gross sales revenue to 100. In the binding 75% ceiling case, assign 75 to illustrative cost recovery and split 25 profit units equally. The state receives 12.5 profit units, plus the separately calculated 2% royalty described by the GRA, giving 14.5 combined units. At a 50% illustrative actual cost share, the split of remaining 50 units yields 25 state profit units plus royalty. At 20%, the corresponding illustration yields 40 plus royalty. These simplified examples omit detailed PSA adjustments and are neither observed 2026 figures nor revenue forecasts. [S02, S15]

A4: Illustrative oil-price sensitivity. A purely hypothetical field selling 1,000,000 barrels per day for 365 days produces 365,000,000 annual barrels. A USD 10 per barrel realized price change moves gross oil sales by USD 3.65 billion before operating expenses, royalty, recoverable costs, fiscal terms, discounting or cash timing. Applying that change directly to the NRF would be incorrect. The case-study model must instead use contract-specific entitlement and fund law.

A5: Capacity versus actual production. Nameplate daily capacity multiplied by 365 describes a theoretical annual maximum before downtime and operational constraints. Actual barrels are the integral of daily measured output, adjusted for reporting boundaries. Government monthly data and independently reported operator annual results should be reconciled.

A6: Carbon versus petroleum cash. A forest-credit agreement describes volume, price, vintage, payment conditions, registry issuance and benefit-sharing obligations. Petroleum cash follows royalty and profit-oil provisions. These may be reported on the same national fiscal page only if separately attributed. Contracted Hess purchase value is not the same thing as realized forest-carbon receipts. [S23]

Technical appendix B. The newcomer decision record

For every proposed instrument, the handbook has eight fields: legal authority; public purpose and measurable output; geological or ecological dependency; evidence required before adoption; implementing institution and budget; independent reviewer; disclosure frequency; and evidence that would trigger revision or suspension. Entries will cover the petroleum licence, environment permit, benefit-sharing instrument, revenue fund, procurement contract, local supplier registry, public investment project and transboundary spill protocol.

Technical appendix C. Questions for external reviewers

- Did the paper apply the legal text in force on the relevant date?
- Did the cost-oil model follow the original executed PSA, including valuation and royalty provisions?
- Did any model count contracted credit sales as cash already received?
- Were unpublished operator assumptions mistakenly treated as regulator-confirmed data?
- Were spill-insurance limits, legal liability and access to immediately liquid compensation distinguished?

- Do Indigenous communities' documented positions appear beyond official summaries?
- Did any poverty estimate use survey data older than the observation year claimed?
- Are state receipts, deposits, parliamentary transfers and spending outputs separately traceable?
- Does the case transfer instruments without recognizing island-state ecological and administrative limits?
- Has an independent expert performed the review, or is a review merely proposed?

References

Full URLs, source types, dates, numerical facts and remaining challenges are recorded in SOURCE_REGISTER.md (S01-S27). Citations inside the final PDF must point to exact pages/sections where available. This edition cites the public original sources by source ID and deliberately does not represent external peer review as completed.

Source register

Dated source IDs correspond to citations in the manuscript. Public URLs link to originals. Key unresolved verification tasks appear after the register.

S01 ExxonMobil Guyana 2023 Annual Report

Early seismic and onshore exploration, May 2015 Liza commercial discovery, 2019 first oil and FPSO dates

Limit: Operator is an interested party; cross-check public licence register

<https://corporate.exxonmobil.com/locations/guyana/publications/2023-annual-report>

S02 Guyana Ministry of Natural Resources, Stabroek petroleum agreement

Official text of the 2016 agreement, contract terms and baseline obligations

Limit: Distinct from future PSAs and public summaries

<https://petroleum.gov.gy/docs-and-pubs/petroleum-agreement-stabroek-block/>

S03 Ministry of Natural Resources, block register

June 27 2016 agreement / October 7 2016 effective date and licence information

Limit: Different contract milestone dates refer to different acts

<https://petroleum.gov.gy/oil-blocks/stabroek-block/>

S04 2024 NRF Annual Report, Ministry of Finance, notes/legal framework

NRF law assented January 23 2019; replaced December 30 2021; withdrawal rule amended February 6 2024

Limit: Full audited report must be checked for changing cash period

https://finance.gov.gy/wp-content/uploads/2025/11/2024_NRF_Annual_Report_Final_Draft-JD0715_GE1507-Final-Print.pdf

S05 Parliament of Guyana, Acts index

Local Content Act 2021 and NRF Act 2021 parliamentary dates

Limit: Parliamentary passing, assenting and commencement dates differ

<https://www.parliament.gov.gy/publications/acts-of-parliament/P80>

S06 Finance, 2026 Budget Speech, January 26 2026, 124-page PDF

January production/revenue/NRF assumptions and policy descriptions

Limit: January projections were superseded by September mid-year update

https://finance.gov.gy/wp-content/uploads/2026/01/Budget_Speech_2026.pdf

S07 Finance, 2026 Mid-Year Report, issued September 2026, printed pp. 21-25 and 104

H1 2026 21 government lifts, USD 1,778.6m profit-oil proceeds, USD 218.4m royalties, USD 4,294.2m end-June fund cash, USD 1,020m withdrawals; revised forecast USD 6,497.6m petroleum deposits

Limit: Government estimates and projections, not audited end-year results

<https://finance.gov.gy/wp-content/uploads/2026/09/Mid-Year-Report-2026.pdf>

S08 IMF, July 31 2026 mission concluding statement

IMF staff views on balance/withdrawal rule, absorption, audit, procurement, AML/CFT, statistical gaps and LCDS

Limit: Staff preliminary findings, not IMF Executive Board Article IV report

<https://www.imf.org/en/news/articles/2026/07/31/mcs073126-guyana-staff-concluding-statement-of-the-2026-article-iv-mission>

S09 IMF, 2025 Article IV report and press

Detailed macro, fiscal and debt context, external baseline

Limit: Historical to 2024; do not use as September 2026 snapshot

<https://www.imf.org/en/publications/cr/issues/2025/05/07/guyana-2025-article-iv-consultation-press-release-staff-report-and-statement-by-the-566712>

S10 World Bank, Guyana country overview

Social indicators, non-oil growth and lack of current household poverty data

Limit: Explicitly labels last cited poverty estimate 2019, not 2026

<https://www.worldbank.org/ext/en/country/guyana>

S11 ExxonMobil, Yellowtail startup, August 8 2025

Fourth FPSO, installed capacity exceeded 900k bopd

Limit: Installed capacity is not sustained actual output

https://corporate.exxonmobil.com/news/news-releases/2025/0808_exxonmobil-guyana-begins-production-at-fourth-offshore-guyana-project

S12 ExxonMobil, November 12 2025

900k bopd daily output milestone

Limit: A single-day threshold is not 2025 annual average

<https://corporate.exxonmobil.com/locations/guyana/news-releases/11122025-daily-oil-production-hits-900000-barrels-in-guyanas-stabroek-block>

S13 Petroleum Management Programme oil-production chart

Government monthly production chart through July 31 2026

Limit: Preserve date and distinguish unit from capacity

<https://petroleum.gov.gy/data-chart/oil-production/>

S14 Government of Guyana, 2023 model fiscal terms

Announced 10% royalty, 65% cost ceiling and 10% corporate tax for future licensing

Limit: Do not apply revised terms retroactively to Stabroek

<https://petroleum.gov.gy/article/govt-announces-wave-of-enhanced-fiscal-terms-for-first-offshore-oil-and-gas-competitive-licensing-round-highlights/>

S15 Guyana Revenue Authority, royalty treatment, 2026

2016 2% royalty added to simplified 12.5% government profit share when cap binds

Limit: 14.5% example is not constant government take across the life of the block

<https://gra.gov.gy/royalty-payments-to-guyana-government/>

S16 EITI, May 12 2026 Board decision

Second validation from May 15; concern over civil-society selection and stakeholder confidence

Limit: No 2026 final validation result has been established in this work

<https://eiti.org/es/node/28602>

S17 EITI, 2026 call for stakeholder views

2022 validation and 2026 validation scope

Limit: Distinguish earlier assessment from later validation

<https://eiti.org/offers/guyana-2026-eiti-validation-call-views-stakeholder-engagement>

S18 Guyana EITI country secretariat

December 2025 report covers fiscal year 2023; validation visits June 2026

Limit: Secretariat claims require triangulation with EITI global board

<https://eiti.gy/about/>

S19 Parliament, Oil Pollution Prevention, Preparedness, Response and Responsibility Act 2025

Enacted Act No. 6 of 2025

Limit: September mid-year report says draft regulations progressing and commencement expected end-2026; enactment is not commencement

<https://parliament.gov.gy/publications/acts-of-parliament/oil-pollution-prevention-preparedness-response-and-responsibility-act-2025-act-6-of-2025>

S20 Government statement about May 7 2026 Court of Appeal decision

Appeal set aside High Court unlimited financial-guarantee order

Limit: Obtain authenticated judgment and independent legal commentary before final jurisprudential analysis

<https://dpi.gov.gy/press-release-ag-hails-coas-ruling-on-exxonmobil-epas-financial-guarantees/>

S21 EPA environmental authorisation services

Environmental authorisation/permit process and regulated-project categories

Limit: Online application portal alone does not prove monitoring quality

<https://eservices.epa.gov.gy/permits>

S22 Guyana LCDS 2030, October 2024 update

2009 framework, Norway USD 227m for 2009-15, 2022 policy and forest-credit programme; 15% community allocation

Limit: LCDS describes government strategy and self-reported expenditure; impact audit separate

<https://lcds.gov.gy/guyanas-low-carbon-development-strategy-lcds-2030-october-2024-update/>

S23 LCDS, Guyana ART TREES fact sheet, 2022

Hess minimum USD 750m purchase agreement, credit volume and minimum prices

Limit: Contracted value is not money already received

<https://lcds.gov.gy/fact-sheet-on-guyanas-engagement-in-art-trees/>

S24 Ghana Petroleum Revenue Management Act 2011

Stabilisation Fund, Heritage Fund, publication cadence and public accountability

Limit: Comparator institutional design, not a performance ranking

<https://ghalii.org/akn/gh/act/2011/815/eng%402011-04-15>

S25 Norway, 2025 Government Pension Fund white paper

Entire net state petroleum cash transferred to GPFG; 3% real-return fiscal guideline

Limit: Norway's long accumulation and mature state capacity differ from a new producer

<https://www.regjeringen.no/contentassets/185dca55ef5649d1bc08db2699bb861f/en-gb/pdfs/stm202420250022000engpdfs.pdf>

S26 Timor-Leste central bank, 2005/2011 Petroleum Fund statutes

Statutory fund structure and amendments

Limit: Cross-check 2026 depletion pressures independently before claims about outcomes

https://www.bancocentral.tl/publication/laws_np/

S27 TotalEnergies Suriname, September 19 2026

GranMorgu 2024 FID, first oil planned 2028

Limit: Planned start is not operating output

<https://totalenergies.sr/press/suriname-granmorgu-project-takes-shape-major-production-equipment-arrives>

Pending verification

Priority unresolved checks before final publication

1. Obtain authenticated PDF text of the May 2026 Court of Appeal judgment and any later appeal.
2. Verify whether the 2025 spill act was commenced after the June 2026 reporting cut-off and before 27 September 2026.
3. Reconcile public Bank of Guyana fund statements to Ministry of Finance June 2026 balance, petroleum deposit and interest categories.
4. Determine public status of 2018-2020 and later cost-oil audits and any contested arbitration.
5. Obtain original EPA permit schedules, environmental impact assessments, baseline marine datasets, third-party incident logs and the precise insurance/parent guarantee instruments.
6. Verify 2026 EITI validation report status at press time, not solely government statements.

7. Independent assessment of Indigenous consultation and village-level benefit delivery with free, prior and informed consultation standards relevant to the jurisdiction.
8. Distinguish project expenditure from commissioned/working infrastructure and verify costs, maintenance and beneficiaries.
9. Validate local content supplier ownership and incremental local value added independently of gross spend.
10. Conduct external technical, financial, legal and environmental review before calling this paper peer reviewed.